

the Secretary of State and the objectors or, in default of agreement, appointed by the Lord Chief Justice of England.

If on any such reference the referee considers that the draft order should be varied to meet the objection, he shall recommend any variation which he considers necessary or expedient, and effect shall be given to those recommendations in the order, if made.

(5) If the Secretary of State considers that any objection, though not a general objection, is of such a character that it is desirable to refer it to a referee, he may so refer it, and in that case the foregoing provisions shall apply as in the case of a general objection.

(6) For the purposes of this section a "general objection" means an objection made either by or on behalf of owners of mines employing not less than one-third of the total number of men employed at the mines affected by the proposed order, or, if the order contains different provisions for different classes of mines, of the total number of men employed in any such class of mines, or by or on behalf of not less than one-third of the total number of men so employed.

The number of men employed shall be calculated in accordance with the returns for the last preceding year sent by owners of mines to the inspectors in pursuance of section thirty-three of the Coal Mines Regulation Act, 1887, and section one of the Metalliferous Mines Regulation Act, 1875.

50 & 51 Vict.
c. 58.
38 & 39 Vict.
c. 39.

(7) The Secretary of State may make regulations as to the procedure and costs on a reference under this section, and those regulations shall have effect accordingly.

(8) An order under this Act may be revoked, altered, or added to by an order made in like manner and subject to the same provisions as the original order.

3.—(1) The expression "mine" means any mine to which the Coal Mines Regulation Acts, 1887 to 1908, or the Metalliferous Mines Regulation Acts, 1872 and 1875, apply.

Application:
and short title.

(2) This Act may be cited as the Mines Accidents (Rescue and Aid) Act, 1910.

CHAPTER 16.

An Act to vest in the Commissioners of Works, freed from ecclesiastical uses, the Chapel comprised in the buildings situate in the metropolitan borough of Chelsea, formerly occupied by the Duke of York's Royal Military School.
[3rd August 1910.]

WHEREAS the buildings situate in or near the King's Road, in the metropolitan borough of Chelsea, formerly occupied by the Royal Military Asylum (now called the Duke of York's

Royal Military School), comprise a chapel (herein-after referred to as the chapel):

And whereas the chapel was used solely for the purposes of the said school :

And whereas the chapel was consecrated on the twelfth day of December eighteen hundred and twenty-four :

And whereas the said school has moved to new buildings erected for the purpose in the parish of Guston near Dover, and those buildings comprise a chapel for the use of the school :

And whereas all stained glass windows, tablets, monuments, and all other ornaments, fittings, and furniture of the chapel have been moved therefrom :

And whereas no burials have taken place in the chapel :

And whereas it is expedient that the chapel and the site thereof should be freed and discharged from all ecclesiastical uses and be liable to be disposed of or otherwise dealt with in like manner as the other buildings formerly so occupied as aforesaid :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Vesting of
chapel in the
Commissioners
of Works.

1. The chapel and the site thereof shall, as from the passing of this Act, be vested in the Commissioners of Works for an estate of inheritance in fee simple in possession freed and discharged from all ecclesiastical uses, but subject to the like trusts as those upon which the other buildings formerly so occupied as aforesaid are held by the Commissioners.

Short title.

2. This Act may be cited as the Duke of York's School (Chapel) Act, 1910.

CHAPTER 17.

An Act to amend the Juries Act, 1825.

[3rd August 1910.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Amendment of
6 Geo. 4. c. 50.

1.—(1) The words “ not exceeding one hundred and forty-four ” in section twenty-two of the Juries Act, 1825, are hereby repealed.